

PARTICIPATION AGREEMENT

1. Parties and Recitals

This Participation Agreement (“**Agreement**”) is entered into between: (i) Green Deal Data Space acting as the governance authority (“**GDDS**”); and (ii) any legal entity admitted to GDDS under this Agreement and bound by the GDDS governance framework, regardless of whether it acts at a given time as a Data Holder, Data User, or only as a participant (“**Member**”). GDDS and the Member are hereinafter each referred to as a “**Party**” and together as the “**Parties**”.

The Parties acknowledge that GDDS is intended to operate as a Common European Data Space supporting the access, integration, sharing and use of environmental and Green Deal related data under a governance framework, rulebook, and associated policies and technical standards.

GDDS :
Member : [full legal name, registration details and address]
Effective Date : [date]

2. Definitions

Term	Definition
“ Access Profile ”	The set of permissions, restrictions, usage rights, technical capabilities, and access conditions granted to a Member under Annex A of the transaction level agreement.
“ Data Holder ”	The legal or natural person who has the legal right or authority to make the Data Product available under Transaction Agreement and within the GDDS.
“ Data Product ”	The datasets, data streams, metadata, databases, documentation, schemas, or related digital resources made available by the Data Holder under this Agreement and Transaction Agreement.
“ Data User ”	The legal or natural person authorized under this Agreement to access, use, process, or otherwise interact with the Data Product in accordance with the terms herein and the applicable GDDS Rulebook.
“ Derivative Work ”	Any analysis, model, application, output, dataset, visualisation, report, transformation, enrichment, aggregation, or other work derived from, based on, generated from, or materially incorporating an authorised Data Product.
“ GDDS Rulebook ”	The governance framework, policies, technical requirements, interoperability requirements, participation conditions, compliance rules, and related operational documentation applicable to GDDS, as amended from time to time in accordance with this Agreement.

“Member”	Any legal or natural person participating in GDDS under this Agreement, including entities acting in one or more roles such as Data Holder, Data User, service provider or other role recognised in the GDDS Rulebook.
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3. Purpose and Scope

3.1 This Agreement sets out the rights and obligations applicable to participation in GDDS, including admission, onboarding, role allocation, use of the GDDS governance framework, baseline conduct requirements, access profiles, suspension and offboarding.

3.2 This Agreement does not, by itself, require any Member to make any specific data available. Except where otherwise required by applicable Union or Member State law, data may be made available within GDDS on a voluntary basis, and the decision to grant access to or share personal or non-personal data shall remain with the relevant Data Holder or other entitled party. The availability, access, sharing, re-use of such data shall be subject to applicable law, the GDDS Rulebook, and, where relevant, the applicable provisions of the Transaction Agreement.

4. Participation Framework and Data Sovereignty

4.1 Membership in GDDS may be provided under a provider-funded model. Where a Member participates in GDDS as a Data Holder making Data Products available through GDDS, such Member is required to pay the applicable participation fee, as specified in the pricing tier (“**Annex 1**”) adopted in accordance with this Agreement and the GDDS Rulebook. Members participating solely as Data Users, Consumers, or catalogue-viewing participants shall not be required to pay a participation fee.

4.2 Where membership in GDDS is provided free of charge, such free of charge membership shall concern participation in GDDS only and shall not, by itself, be interpreted as requiring any Member to make Data Product available free of charge.

4.3 Data Product availability, access conditions, and any compensation shall remain subject to the decision of the relevant Data Holder or other entitled party, in accordance with applicable law, the GDDS Rulebook, and any applicable transaction level agreements.

4.4 A Member may participate in GDDS in one or more roles, including as Data Holder, Data User, service provider, or other role recognised in the GDDS Rulebook.

4.5 The same Member may act as Data Holder in one transaction and as Data User in another. Role allocation under this Agreement therefore does not predetermine transaction level rights and obligations, which shall be assessed case by case under applicable law and transaction specific terms.

4.6 Except where mandatory law provides otherwise, each Member acting as Data Holder remains responsible for determining whether, on what basis, and subject to which transaction level conditions it makes Data Product available.

4.7 This Agreement establishes the common governance conditions for participation in GDDS, but it does not replace transaction level licences, or other Data Product sharing terms governing particular datasets, requests, or services.

4.8 GDDS does not acquire ownership of Member Data Product by virtue of this Agreement alone.

5. Admission, Onboarding, and Access Profiles

5.1 A prospective Member shall submit an application for admission to GDDS, including the information reasonably required to assess its intended role, intended use of GDDS, contact and registry details, and compliance with applicable legal, technical, operational, and role-specific pre-conditions. GDDS shall review the application in accordance with the admission criteria set out in the GDDS Rulebook and this Agreement.

5.2 A prospective Member shall become bound by this Agreement by signing it, including through electronic or other digital means, subject to satisfying the applicable admission criteria.

5.3 Member participating in GDDS as a Data Holder making Data Products available through GDDS shall ensure that it is reasonably capable, at the time of admission, of complying with the applicable legal, technical, interoperability, operational, cybersecurity, identity management, and role specific requirements defined in the GDDS Rulebook. Unless otherwise agreed by GDDS, such Member shall become fully operationally and technically compliant within [...] days from admission.

5.4 Each Member remains independently responsible for activities, systems, processing operations, Data Products, datasets, integrations, and legal obligations falling within its own sphere of control, including compliance with applicable data protection, intellectual property, confidentiality, cybersecurity, sector specific, and regulatory requirements. In particular, Data Holders and Data Users remain independently responsible for the lawfulness of their own processing activities, data-sharing activities, usage activities, integrations, and transaction-level conduct under applicable law. Except where expressly required under applicable law or this Agreement, GDDS shall not assume responsibility for activities, processing operations, or legal obligations occurring outside the governance, operation, or technical infrastructure of GDDS itself.

5.5 GDDS may require, as conditions of admission, identity verification, role-based eligibility checks, compliance attestations, acceptance of applicable policies, confirmation of technical compatibility, and provision of contact and registry information reasonably necessary for participation.

5.6 GDDS shall make the relevant participation conditions, GDDS Rulebook, and required accession steps, including adherence to technical specifications, available in an accessible and understandable manner before admission. If access is denied, GDDS should communicate the principal reasons, unless restricted by law, confidentiality, or security considerations.

5.7 Subject to the GDDS Rulebook and technical feasibility, GDDS may grant the Member one or more **Access Profiles**.

5.8 Access Profiles, permitted actions, usage permissions, restrictions, duration, renewal terms, fee of the transaction, and any role-specific limitations shall be documented in Annex A of the transaction level agreement.

5.9 Annex A may specify, depending on the applicable role, dataset, service, or transaction, whether the Member is authorised to:

- (a) access, view, retrieve, receive, download, store, organise, structure, adapt, combine, analyse, process, use, disclose, transmit, share, publish, index, or otherwise make use of Data Product;
- (b) create, generate, train, improve, test, validate, derive, transform, enrich, aggregate, anonymise, pseudonymise, or otherwise produce derivative or non-derivative outputs, models, analyses, services, applications, or works based on authorised Data Product;
- (c) contribute, upload, register, describe, list, publish, market, distribute, or otherwise make available Data Product;
- (d) use authorised Data Product for commercial, research, public-interest, interoperability, operational, analytical, training, or non-commercial purposes;
- (e) grant access to authorised personnel, processors, subcontractors, or affiliated entities in accordance with this Agreement and the applicable transaction-level conditions; and/or
- (f) exercise any additional permissions expressly documented in Annex A, the Rulebook, or the relevant transaction agreement.

5.10 Access under this Agreement shall not be construed as conferring rights beyond those expressly granted. Where specific Data Product are subject to transaction level usage controls, licences, or restrictions of related law, those controls prevail.

6. Participation Fees and Subscription Model

6.1 Membership in GDDS may be provided under a provider funded model. Where a Member participates in GDDS as a Data Holder making Data Products available through GDDS, such Member is required to pay the applicable participation fee, as specified in the pricing tier set out in Annex 1 and adopted in accordance with this Agreement and the GDDS Rulebook. Members participating solely as Data Users, Consumers, or catalogue-viewing participants shall not be required to pay a participation fee.

6.2 The applicable participation fees, pricing tiers, billing periods, payment dates, invoicing details, and any exemptions or reductions shall be specified in Annex 1.

6.3 Unless otherwise stated, all fees are exclusive of applicable taxes, duties, levies, withholding obligations, or similar governmental charges. Each Party shall remain responsible for its own taxes and fiscal obligations under applicable law.

6.4 Failure to pay undisputed amounts within the applicable payment period may result in proportionate suspension, restriction, or limitation of participation rights, provided that GDDS first gives prior notice and a reasonable opportunity to remedy the non payment.

7. Member Obligations

7.1 The Member shall comply with this Agreement, the GDDS Rulebook, applicable policies referenced in the GDDS Rulebook, and all mandatory legal requirements relevant to its role or roles, including data protection, confidentiality, competition law, and sector-specific obligations where applicable.

7.2 The Member shall cooperate in good faith with reasonable requests relating to onboarding, conformity checks, data breaches, interoperability, and governance oversight, provided that such requests are proportionate and relevant to participation in GDDS.

7.3 The Member shall ensure that its personnel, sub processor and sub contractors acting within GDDS are bound by obligations consistent with this Agreement to the extent relevant to the Member's role.

8. Data Protection

8.1 Each party shall comply with applicable data protection legislation, including General Data Protection Regulation (Regulation EU 2016/679) and national applicable legislation, to the extent it processes Personal Data in connection with this Agreement or any participation activity in GDDS.

8.2 Where a Member determines the purposes and means of processing Personal Data in relation to its own participation, offerings, or transactions, it shall act as an independent controller unless the parties expressly agree and document another arrangement required by law.

8.3 Where GDDS processes Personal Data for participation management, identity, access control, governance, registry, support, audit trail, or security purposes, GDDS shall process such data in compliance with applicable Data Protection Regulations, shall implement the measures and safeguards required thereunder, and shall fulfil the obligations applicable to it under such regulation.

8.4 If any specific processing operation gives rise to a controller-processor, joint-controller, or other regulated allocation under GDPR, the relevant parties shall conclude the necessary supplementary arrangement before or at the time of that processing operation.

8.5 Each party shall implement appropriate technical and organisational measures proportionate to the risks presented by the processing activities under its control.

8.6. Where GDDS or a Member engages subcontractors, sub-processors, external service providers, or other third parties in connection with activities performed under this Agreement or within GDDS, the relevant party shall ensure, through appropriate contractual or legal arrangements, that such parties are bound by obligations consistent with the applicable provisions

of this Agreement, including confidentiality, data protection, security, and any other relevant compliance obligations applicable to the relevant activities. The engaging party shall remain responsible for the acts and omissions of such parties to the extent required under applicable law or the relevant contractual arrangement.

9. Confidentiality

9.1 Each party shall keep confidential all non-public information obtained from the other party in connection with participation in GDDS that is identified as confidential or that ought reasonably to be understood as confidential, including commercially sensitive information, technical documentation, governance materials not intended for public release, credentials, and security-relevant information.

9.2 Confidentiality obligations shall not prevent a Member from exercising rights expressly granted under this Agreement, applicable transaction-level terms, or mandatory law. Nor shall they be interpreted to neutralise a Member's legitimate ability to benefit from rights lawfully granted within GDDS.

9.3 Confidential information may be disclosed only to personnel, advisers, processors, or subcontractors who need to know it for permitted purposes and who are bound by equivalent confidentiality obligations, or where disclosure is required by law.

9.4 The confidentiality obligations in this clause survive termination for [...] years, or longer where required by law or where trade secret protection continues to apply.

10. Intellectual Property and Data Rights

10.1 Except as expressly provided in this Agreement, the GDDS Rulebook, or a transaction-level agreement, no transfer or assignment of intellectual property rights is made by virtue of participation in GDDS alone.

10.2 Each Member retains its pre existing rights, title, and interests in its own data, datasets, databases, content, software, documentation, metadata, trade secrets, trademarks, models, and other intellectual property.

10.3 Unless expressly prohibited in the applicable GDDS Rulebook, licence, or transaction level agreement, the authorised Member may create derivative or non-derivative works including models, applications, outputs, datasets, visualisations, reports, services, or other works based on authorised data.

10.4 Unless expressly restricted, authorised data may be used for commercial purposes, including analytics, interoperability services, model development, operational optimisation, and value added services, provided that such use remains within the granted usage permissions.

10.5 Where attribution requirements apply under the GDDS Rulebook, the applicable licence, or transaction level terms, the Member shall appropriately identify the source of the relevant Data Product.

10.6 Unless expressly authorised, access to Data Product under this Agreement shall not be interpreted as granting exclusive rights. The same or similar Data Product may be made available to other Members or third parties.

10.7 To the extent necessary for operating GDDS, the Member grants GDDS a limited, non-exclusive, non-transferable, revocable licence to host, display, index, register, technically process, and make findable Member provided metadata, identifiers, service descriptions, and participation-related materials solely for the purposes of operating, securing, governing, facilitating interoperability, and providing intermediary services within GDDS.

10.8 Any additional use of Member content, data, software, branding, models, or other intellectual property by GDDS requires separate express permission.

11. Suspension, Restriction, Offboarding, and Termination

11.1 GDDS may suspend, restrict, or revoke participation rights only on objective and documented grounds, including material breach of this Agreement or the Rulebook, serious security risks, proven identity or credential issues, repeated non-compliance, or legal necessity.

11.2 Immediate suspension shall be reserved for serious and urgent situations where delay would expose GDDS, other Members, or affected persons to material legal, security, or operational risk.

11.3 Except in urgent cases, GDDS shall provide prior notice, a brief statement of reasons, and, where feasible, an opportunity to remedy the issue before suspension or termination takes effect.

11.4 A Member may terminate this Agreement on [...] days' written notice, subject to completing any reasonable offboarding steps, including the orderly closure of credentials, outstanding governance obligations, and any continuing transaction level commitments owed to other parties.

11.5 Offboarding shall include, as applicable, revocation of credentials, removal or update of registries, return or deletion of confidential participation materials, and treatment of data or copies in accordance with applicable law and transaction agreement.

11.6 The termination of this Agreement does not automatically extinguish separate transaction level rights and obligations that by their nature survive.

11.7 GDDS shall maintain an offboarding procedure designed to safeguard continuity, trust, and the legitimate interests of other Members or GDDS.

12. Liability and Remedies

12.1 Each Party remains independently responsible for compliance with the legal, regulatory, technical, data protection, confidentiality, cybersecurity, and security obligations applicable to its own activities, systems, processing operations, and use of GDDS.

12.2 Each Party shall implement appropriate technical and organisational measures proportionate to the nature of its participation activities, the sensitivity of the relevant Data Products, the risks

arising from its systems or processing operations, and the applicable GDDS Rulebook requirements.

12.3 Each Member shall remain responsible for the confidentiality, security, and proper management of its credentials, access keys, tokens, certificates, authentication methods, and access rights used within GDDS.

12.4 The Member shall notify GDDS without undue delay upon becoming aware of any suspected unauthorised access, credential compromise, security incident, system vulnerability, or other event that may affect the security, integrity, confidentiality, interoperability, or proper functioning of GDDS.

12.5 Each Member shall comply with the technical security protocols, data handling guidelines, interoperability requirements, identity requirements, access-control requirements, and security configurations applicable to its participation in GDDS and set out in the GDDS Rulebook or related participation documentation.

12.7 Each Member remains responsible for any unauthorised disclosure or misuse of confidential information, trade secrets, credentials, protected information, or non-public GDDS materials resulting from its own acts, omissions, systems, personnel, processors, subcontractors, or other third parties acting on its behalf.

12.8 Each Party shall be liable for direct damages arising out of or in connection with its breach of this Agreement where such breach results from its negligent acts, gross negligence, wilful misconduct, or failure to comply with obligations applicable to it under this Agreement or mandatory law.

12.9 Nothing in this Agreement shall exclude or limit liability for fraud, fraudulent misrepresentation, wilful misconduct, gross negligence, or any liability that cannot be excluded or limited under applicable law.

12.10 Except where mandatory law provides otherwise, the Parties may agree reasonable liability limitations in the applicable accession form, fee schedule, participation tier, or transaction-level agreement, provided that such limitations are proportionate and do not deprive the other Party of meaningful remedies.

13. Amendments

13.1 GDDS may update the GDDS Rulebook, policies, technical standards, and annexes where reasonably necessary for legal compliance, security, interoperability, operational functionality, or the orderly development of GDDS.

13.2 Material amendments to this Agreement or to incorporated documents that significantly affect participation rights, technical requirements, access profiles, confidentiality, liability, suspension, or termination shall be notified in advance and shall indicate the reason for the amendment and the planned effective date.

13.3 Where a material amendment adversely affects a Member and no mandatory legal requirement compels immediate application, GDDS shall, where practicable, allow a reasonable period for comments and may offer transition arrangements or a right to terminate before the change takes effect.

13.4 Administrative or immaterial updates may be notified through the standard GDDS communication channels identified in the GDDS Rulebook.

14. Applicable Law

14.1 This Agreement, including the governance framework of GDDS and the interpretation of the GDDS Rulebook, shall be governed by the laws of the country where GDDS is established, excluding its conflict of laws rules.

14.2 Nothing in this Agreement shall exclude or limit the application of mandatory provisions of applicable European Union law, including, where applicable, Regulation (EU) 2023/2854 (Data Act), Regulation (EU) 2022/868 (Data Governance Act), Regulation (EU) 2016/679 (GDPR), competition law, consumer protection law, cybersecurity law, or other overriding mandatory provisions applicable to the Parties or the relevant processing, transaction, or activity.

14.3 Where a transaction agreement separately specifies an applicable law, such law shall govern that specific transaction or arrangement to the extent permitted under applicable mandatory law.

14.4 The Parties shall cooperate in good faith to review and, where reasonably necessary, adapt the relevant provisions of this Agreement where changes in applicable law, interoperability requirements, cybersecurity requirements, technical standards, or the GDDS Rulebook materially affect the operation of GDDS or the Parties' participation therein.

15. Dispute Resolution

15.1 In the event of any dispute, disagreement, or claim arising out of or in connection with this Agreement, the GDDS Rulebook, participation in GDDS, onboarding, access profiles, governance decisions, suspension, or offboarding, the Parties shall first seek resolution through the internal resolution mechanism designated by GDDS.

15.2 The Party raising the matter shall provide a written notice describing the relevant facts, concerns, and requested resolution. The Parties shall cooperate in good faith during the internal resolution process.

15.3 If the dispute is not resolved within sixty (60) days following the written notice, either Party may refer the matter to the competent courts of the country where GDDS is established, unless mandatory law provides otherwise.

15.4 Unless otherwise agreed in a transaction agreement, this Article does not prevent Members involved in a specific Data Transaction from separately agreeing on arbitration, mediation, or another dispute resolution mechanism applicable to that transaction.

15.5 Nothing in this Article prevents a Party from seeking urgent interim, injunctive, security-related, or protective measures before a competent authority where necessary to prevent serious harm, confidentiality breaches, cybersecurity risks, or unlawful processing activities.

16. Renegotiation and Regulatory Changes

16.1 The Parties acknowledge that the GDDS ecosystem, applicable legal frameworks, interoperability standards, technical specifications, and governance requirements may evolve over time.

16.2 The Parties may, in good faith, renegotiate the relevant provisions of this Agreement where necessary to reflect material changes affecting the GDDS ecosystem, applicable legal requirements, technical standards, or the operation of this Agreement. Any amendment resulting from such renegotiation shall be made in writing and signed by duly authorized representatives

17. Signature Date and Execution

This Agreement is signed on the signature date indicated below and may be executed by handwritten signature or by electronic or other digital means, where legally permitted.

Signature Date: ____ / ____ / ____

For GDDS	For the Member
Legal name:	Legal name:
Represented by:	Represented by:
Title:	Title:
Date:	Date:
Place:	Place:

Signature:	Signature:
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